

ROOFLINE, INC., v SPERRY, et al

24CV47576

CROSS-COMPLAINANT'S MOTION TO PERMIT SERVICE BY PUBLICATION ON CROSS-DEFENDANT JON WAYNE JOCHIMS

This matter involves a breach of contract dispute brought by Roofline, Inc. ("Plaintiff") and United Home Specialist Co. dba Kangaroo ("United"), Rodney Sperry ("Sperry"), Merchants Bonding Company (Mutual) ("Merchants") and Platte River Insurance Company ("Platte")² (collectively "Defendants").

On August 23, 2024, Plaintiff filed suit against Defendants. On September 26, 2024, Merchants filed a cross-complaint against Roofline, Patricia Kleinhart ("Kleinhart") and American Builders and Contractors ("American.")

On November 19, 2024, default was entered against United.

On November 18, 2025, Perry filed a cross-complaint against United, Jon Wayne Jochims ("Jochims"), Claudia Susana Rivas ("Rivas") and Tracy Emery Smith ("Smith.") On February 6, 2026, Perry filed a motion to serve Jochims by publication, which motion was denied for failure to comply with local rules of Court. At the March 4, 2026, case management conference, the Court noted that Jochim had still not been served and ordered Perry to effectuate service on or before the next CMC on May 27, 2026.

The motion for service by publication is unopposed.

I. Legal Standard

Compliance with the statutory procedures for service of process is essential to establish personal jurisdiction. (*Dill v. Berquist Construction Co.* (1994) 24 Cal.App.4th 1426, 1439.) For service within the state, "[a] summons may be served by personal delivery of a copy of the summons and of the complaint to the person to be served." (Code Civ. Proc. § 415.10.) Alternatively, if the summons and complaint cannot with reasonable diligence be personally delivered, a plaintiff may effectuate substitute

² Platte was dismissed with prejudice on October 25, 2024.

service by leaving a copy of the summons at the person's dwelling or usual place of residence and then also sending a copy via first-class mail. (Code Civ. Proc. §415.20(b)(1).) A plaintiff may show reasonable diligence "by attempting personal delivery of the summons and complaint, in good faith, on at least three occasions on three different days at three different times." (*Id.*, subd.(b)(2).) Service may also be effectuated within the state by U.S. mail. (Code Civ. Proc., § 415.30, subd. (a).) Service by mail is deemed complete "on the date a written acknowledgment of receipt of summons is executed, if such acknowledgment thereafter is returned to the sender." (*Id.*, subd. (c).)

Where these methods have failed, a "summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article[.]" (Code Civ. Proc., § 415.50, subd. (a); *Rios v. Singh* (2021) 65 Cal.App.5th 871, 880 ["If service of a summons by other means proves impossible, service may be effected by publication..."])

Pursuant to Code Civ. Procedure section 415.50:

A summons may be served by publication if upon affidavit it appears to the satisfaction of the court in which the action is pending that the party to be served cannot with reasonable diligence be served in another manner specified in this article and that either:

(1) A cause of action exists against the party upon whom service is to be made or he or she is a necessary or proper party to the action.

(2) The party to be served has or claims an interest in real or personal property in this state that is subject to the jurisdiction of the court or the relief demanded in the action consists wholly or in part in excluding the party from any interest in the property.

II. Discussion

Perry, via a process server, attempted to personally serve Jochim six different times at a residential address of 6651 Hillsdale Blvd, Sacramento, Ca 95842. (Declaration of Reasonable Diligence of Katrina Williams dated 12/22.2025.) There is no evidence of any attempt to serve Jochim by U.S. mail under Code Civ. Proc. Section 4015.30(a). Perry has also failed to provide an affidavit which complies with the requirements of Code Civ. Proc. Section 415.50(a)(1)(2).

Perry has not exercised reasonable diligence to serve Jochim within the manners authorized by the code, prior to requesting service by publication.

Accordingly, the motion for service by publication is **DENIED**, without prejudice to refile if all statutory provisions have been exhausted prior to filing and all statutory requirements are met with regard to the motion.

The clerk shall provide notice of this ruling to the parties forthwith. No further formal Order is required.

WELLS FARGO BANK, N.A. v HARBER

25CF15340

PLAINTIFF'S MOTION FOR JUDGMENT ON THE PLEADINGS

This is an action by Wells Fargo Bank, N.A. ("Plaintiff") against Loretta M. Harber ("Defendant") for the collection of a credit card debt in the sum of \$ \$17,978.96. In his Answer, Defendant denied the allegations in the Complaint and raised the affirmative defense that there was no proof of debt.

The Court granted Plaintiff's motion to deem requests for admissions admitted on January 16, 2026.

Now before the Court is Plaintiff's motion for judgment on the pleadings.

I. Legal Standard

A motion for judgment on the pleadings serves the same function as a demurrer but is made after the time for demurrer has expired. (Code Civ. Proc., § 438(c)(2); *Cloud v. Northop Grumman Corp.* (1998) 67 Cal.App.4th 995, 999.) Except as provided by statute, the rules governing demurrers apply. (*Id.*) The court must accept as true the factual allegations of the complaint and must give them a liberal interpretation. (*Gerawan Farming, Inc., v. Lyons* (2000), 24 Cal. 4th 468, 515-516.) In addition, the court is limited in its consideration to the face of the pleadings or matters entitled to judicial notice. (Code Civ. Proc. § 438(d).)

If the motion is granted in favor of the plaintiff, "it shall be based on the grounds that the complaint states facts sufficient to constitute a cause of action against the defendant and the answer does not state facts sufficient to constitute a defense to the complaint. (Code Civ. Proc. §438(c)(3)(a).)

II. Legal Analysis

A breach of contract claim requires: 1) the existence of a contract, 2) plaintiff's performance or excuse for nonperformance, 3) defendant's breach, and 4) the resulting damages to the plaintiff. (*San Mateo Union High Sch. Dist. v. Cnty. of San Mateo*, (2013) 213 Cal. App. 4th 418, 439.) "Where contract language is clear and explicit and does not lead to absurd results, we ascertain intent from the written terms and go no further." (*Shaw v. Regents of Univ. of Cal.*, (1997) 58 Cal. App 4th 44, 53.)